
Donald Trump is relishing his pardon power — and using it

Published by

Estimated reading time

6 min

Added on

2025-11-17

Address

<https://www.salon.com/2025/11/16/donald-trump-is-relishing-his-pardon-power-and-using-it/>

Donald Trump is relishing his pardon power — and using it

These days, the [Justice Department](#) is so busy [pursuing revenge](#) against President [Donald Trump](#)'s enemies it's a wonder they have time to do anything else. In fact, [nearly half of all FBI agents in the major field offices](#) have been reassigned to assist the Department of Homeland Security in rounding up undocumented day laborers and daycare workers, illustrating Trump's priorities. But it's a mistake to think the administration is solely focused on vengeance. The president is also liberally using his authority to reward his friends.

Trump likes to say he can do anything he wants because [he "has an Article II."](#) Until now, at least, that has been an exaggeration. He has a great deal of power, to be sure, but it has not been unlimited. The Constitution explicitly grants power to the legislative and judicial branches too, which we all learned in elementary school is called the balance of power. This president is pushing the limits beyond all previous understanding, and his actions have provoked numerous legal challenges that are likely to be decided by the [Supreme Court](#).

However, there is one area in which the president does have absolute plenary authority: The power of the pardon. And Donald Trump is using it liberally.

As ProPublica [reported](#), by skipping over the Justice Department's [usual standards and requirements](#) and pretty much running an ad hoc system right out of the White House, he is not following any of the usual rules that have governed presidents in the past. The result? Thousands of people requesting pardons and clemency are waiting in line, while Trump's buddies, and those who have the money or access to get to him directly, are successful in their quest.

The biggest story of the week was the House Oversight Committee's [release of over 20,000 pages of documents](#) related to convicted sex offender Jeffrey Epstein, including emails and texts, and [the success of the discharge petition](#), which requires a vote by the full House on releasing all the files held by the Justice Department.

Amidst all the hoopla, more under the radar was the story of Epstein's accomplice Ghislaine Maxwell's [very special treatment](#) in the cushy low-security prison to which she was transferred after giving Deputy Attorney General — and former Trump personal attorney — Todd Blanche a friendly interview. According to reports, she is [working on a commutation application](#).

Want more sharp takes on politics? [Sign up for our free newsletter](#), **Standing Room Only**, written by Amanda Marcotte, now also a weekly show [on YouTube or wherever you get your podcasts](#).

Near the end of Trump's [interview](#) on the Nov. 2 episode of "60 Minutes," CBS News correspondent Norah O'Donnell asked the president about his recent pardon of crypto-billionaire Changpeng Zhao (known as CZ) who has extensive business dealings with [World Liberty Financial](#), a cryptocurrency company co-founded by Donald Trump Jr. and Eric Trump that has garnered them billions of dollars in profits since their father returned to the White House. The mere appearance of such a thing is staggeringly corrupt, and Trump's long, rambling explanation did nothing to dispel that impression.

"Okay, are you ready?" he asked O'Donnell, before launching into a remarkable answer. "I don't know who he is. I know he got a four-month sentence or something like that. And I heard it was a Biden witch hunt." But Trump soon digressed, dancing as fast as he could, admitting that his sons

are very involved in crypto but saying he doesn't know much about it — except that China is going to be doing it if America doesn't. He admitted the connection “might look bad” if that had been his motivation, but he knew nothing about it because he was too busy doing other things. He went on and on like this until O'Donnell finally asked, “So, not concerned about the appearance of corruption with this?” Trump replied, “I can't say, because — I can't say — I'm not concerned. I don't — I'd rather not have you ask the question...”

Let's pause to consider this: Trump said he didn't know the man who had made his family billions of dollars. He also [claims that former president Joe Biden's pardons are null and void](#) because he used an autopen, which is perfectly legal. He said, “In other words, Joe Biden did not sign them but, more importantly, he did not know anything about them!” His Justice Department has [launched a formal investigation](#) into the matter. Meanwhile, there's no word on whether Trump personally signed each clemency document of the nearly 1,600 Jan. 6 insurrectionists he pardoned on his first day in office, or the [second pardon](#) he issued a few days ago to a defendant convicted of a gun crime.

It's impossible to imagine any other president in American history getting away with such shameless hypocrisy, but Trump's rampant misuse of the pardon power is so commonplace that it's barely a blip on the media's radar.

It's impossible to imagine any other president in American history getting away with such shameless hypocrisy, but Trump's rampant misuse of the pardon power is so commonplace that it's barely a blip on the media's radar.

In a recent column, the New York Times' David French [discussed](#) some of Trump's pardon recipients who have gone on to commit more crimes, some of them violent, which would normally be a scandal in itself. But French proceeded to note that the possibility of a president abusing this power was one of the founders' great worries.

Anti-federalists such as George Mason wrote that the president “ought not to have the power of pardoning, because he may frequently pardon crimes which were advised by himself” and that “it may happen, at some future day that he will establish a monarchy, and destroy the republic.” Another [warned](#) that the pardon power could be used “to the purposes of gratifying their own interest and ambition, and it is scarcely possible, in a very large republic, to call them to account for their misconduct, or to prevent their abuse of power.” These words couldn't be more relevant to our current situation.

As French pointed out, the Federalists replied that there was no reason to worry because the Congress would impeach any president who dared to do such things. Right. How's that worked out for us so far?

Trump's flagrant abuse of the pardon power to help his friends and make money for his family is yet another of his grotesque assaults on the presidency. But the threat to the Constitution and our democratic system is even greater. The immunity for “official acts” conferred on him — and future presidents — by the Supreme Court's July 2024 decision in [Trump v. United States](#), along with the pardon power, amounts to a get-out-of-jail-free card for himself and anyone who carries out his wishes. And he has shown that he will have no compunction about doing just that.

Just last week, Trump [preemptively pardoned dozens of his associates](#) who attempted to overturn

the 2020 election, including former New York City Mayor Rudy Giuliani, former chief of staff Mark Meadows, and attorneys Sidney Powell and John Eastman. Next time, everyone involved will know they have nothing to fear from the law if they try it again — including Trump himself.

[Read more](#)

[about this topic](#)

Produced by wallabag with tcpdf

Please open [an issue](#) if you have trouble with the display of this E-Book on your device.